INDIAN CONSTITUTION

Study approach: Read each chapter, review the comparison tables, and attempt the MCQs (another booklet)

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Syllabus Wallah Notes by Dr S Ambadi Narayanan

1. The Constitution and Historical Background

Constitution is the supreme legal framework of our country. It defines the powers and responsibilities of public institutions, protects rights and establishes limits on governmental action. India's Constitution is a written constitution and is often described as a living document because it can be interpreted and amended within constitutional limits.

British colonial rule led to demands for representative government, civil liberties, equality, accountability and self-government. The freedom struggles therefore shaped not only independence but also the values that informed constitution-making.

The Constitution is supreme: winning an election does not permit a government to act beyond constitutional restrictions.

Parliament, the executive and the judiciary perform different functions within this framework.

Key dates

Event	Date
Constituent Assembly formed	1946
Drafting Committee constituted	29 August 1947
Constitution adopted	26 November 1949
Constitution came into force	26 January 1950

2. Constituent Assembly and Key Dates

The Constituent Assembly prepared the Constitution through committee work, discussion, drafting, amendments and voting. It was constituted in 1946, before independence. It was primarily indirectly elected under the arrangements then in force, rather than through universal adult franchise.

Its initial strength was 389; following Partition, it became 299. Dr Rajendra Prasad presided over the Assembly, Dr B. R. Ambedkar chaired the Drafting Committee, and B. N. Rau was Constitutional Adviser. Jawaharlal Nehru and Sardar Vallabhbhai Patel were among its major figures.

Adoption and commencement are not the same: 26 November 1949 is Constitution Day; 26 January 1950 is Republic Day. The latter date marks the Constitution's commencement and India becoming a republic.

Revision flow: Freedom movement → Constituent Assembly (1946) → Drafting Committee (1947) → Adoption (1949) → Commencement (1950).

3. Preamble and Constitutional Philosophy

The Preamble opens with "We, the People of India", emphasizing the people as the source of constitutional authority.

It sets out India's character as a sovereign, socialist, secular, democratic republic and the ideals of justice, liberty, equality and fraternity.

It guides interpretation but does not function as a separate, independently enforceable Fundamental Right.

Ideal	Simple meaning
Sovereign	India exercises independent political authority.
Socialist	Commitment to social and economic justice and welfare.
Secular	No official State religion; respect for religious freedom.
Democratic	Government derives authority from the people through representative institutions.
Republic	Head of State is not hereditary.

Justice	Social, economic and political fairness.
Liberty	Freedom of thought, expression, belief, faith and worship.
Equality	Equal status and opportunity; opposition to unjust discrimination.
Fraternity	Dignity of individuals, common belonging, unity and integrity.

Liberty and equality are complementary constitutional values. Freedom may be subject to constitutionally justified restrictions; equality does not always require identical treatment in different circumstances.

4. Fundamental Rights

Fundamental Rights are constitutionally protected rights that limit arbitrary State action.

They are justiciable, meaning that people can seek judicial enforcement where the relevant right applies.

Some rights protect all persons, including foreigners, while certain rights are reserved for citizens.

Fundamental Right	What to remember
Right to Equality	Equality before law; protection from unjust discrimination.
Right to Freedom	Speech, expression, movement, residence, occupation and other protected freedoms, subject to lawful restrictions.
Right against Exploitation	Protection against trafficking, forced labour and constitutionally prohibited child labour.
Freedom of Religion	Freedom of conscience and to profess, practise and propagate religion, subject to constitutional limits.
Cultural and Educational Rights	Protection of minority language, culture and educational institutions.
Right to Constitutional Remedies	Judicial enforcement of Fundamental Rights.

The Right to Property is no longer a Fundamental Right; it is protected as a constitutional/legal right. under article 300A
A constitutional freedom is not automatically unlimited, and rights must be interpreted alongside the Constitution's other provisions.

The duty to protect public property is stated in the Constitution. The Prevention of Damage to Public Property Act, 1984, provides legal penalties for certain acts of damage to public property.

5. Fundamental Duties

Fundamental Duties describe responsibilities expected of Indian citizens. They are not all directly enforceable by themselves, but legislation may give effect to particular duties. Duties do not automatically cancel Fundamental Rights.

Having a Fundamental Duty does not mean you lose your Fundamental Rights.

- Respect the Constitution, National Flag and National Anthem.
- Cherish the ideals of the freedom struggle; protect India's sovereignty, unity and integrity.
- Defend the country and render national service when called upon.
- Promote harmony, reject practices derogatory to women's dignity and preserve cultural heritage.
- Protect the environment, forests, lakes, rivers, wildlife and living creatures.
- Develop scientific temper, humanism, inquiry and reform.
- Safeguard public property, renounce violence and strive for excellence.
- For parents/guardians: provide opportunities for education to children aged 6–14.

Example: Peacefully criticizing a government decision while protecting public property can be consistent with both Fundamental Rights and Fundamental Duties.

6. Citizenship

Citizenship establishes a legal relationship between a person and India. India follows single citizenship: a person is an Indian citizen, not a separate citizen of Tamil Nadu, Kerala or any other State.

makes laws

Parliament legislates on acquisition and termination of citizenship. Merely living in India does not automatically confer citizenship.

Mode	Meaning
Birth	Birth in India, subject to the law applicable on the date of birth and parental status.
Descent	Birth outside India through Indian parent(s), subject to statutory requirements.
Registration	Application by eligible categories with a qualifying connection to India.
Naturalisation	Application by a qualifying foreign national satisfying prescribed conditions.
Incorporation of territory	Citizenship specified when a territory becomes part of India.

= Indian parent + birth abroad.

Apply through an eligible category

Eligible foreigner applies for citizenship.

Book Notes by Narayanan D S Ambadi

7. Constitutional Remedies and Writs

Constitutional remedies make Fundamental Rights meaningful by allowing judicial enforcement. The Supreme Court and High Courts may issue writs; High Courts also have a broader writ jurisdiction in certain respects. The five writs should be distinguished by their purpose and the stage of the dispute.

Writ	Function	Illustration
Habeas Corpus	Tests unlawful detention.	A person is detained without legal basis.
Mandamus	Directs a public authority to perform a required legal duty.	An authority refuses to carry out a mandatory duty.
Prohibition	Stops a lower court/tribunal from acting outside jurisdiction.	A tribunal is about to hear a matter beyond its powers.
Certiorari	May quash an unlawful order of a lower court/tribunal.	A tribunal has already made an order beyond jurisdiction.
Quo Warranto	Questions legal authority to hold a public office.	An appointee lacks mandatory qualifications.

Memory aid: Detention → Habeas Corpus; Duty → Mandamus; Stop proceedings → Prohibition; Quash order → Certiorari; Office eligibility → Quo Warranto.

8. Union Executive: President and Vice-President

The President is India's constitutional Head of State and the formal executive head of the Union. The President is indirectly elected for a five-year term and ordinarily acts on the aid and advice of the Council of Ministers. A resignation is addressed to the Vice-President.

The Presidential electoral college includes elected MPs of both Houses, elected MLAs of States, and elected MLAs of Delhi and Puducherry. Nominated MPs and members of State Legislative Councils do not vote in the Presidential election.

The Vice-President is indirectly elected by members of both Houses of Parliament, including nominated MPs; State MLAs do not vote. The Vice-President is ex-officio Chairman of Rajya Sabha, serves a five-year term, may act as President in the prescribed circumstances, and resigns to the President.

Election	Elected MPs	Nominated MPs	Eligible elected MLAs
President	Yes	No	Yes
Vice-President	Yes	Yes	No

9. Prime Minister, Council of Ministers and Cabinet

The President formally appoints the Prime Minister, ordinarily the person able to command majority support in Lok Sabha. Voters elect Lok Sabha MPs; the Prime Minister is not separately elected in a nationwide direct election. A Rajya Sabha member can become Prime Minister. A person appointed a minister without being an MP must become a member of either House within six months to continue in office.

The Prime Minister is the real executive head because they lead governmental policy and administration through the ministerial executive. The Council of Ministers is headed by the Prime Minister and is collectively responsible to Lok Sabha. Ministers are appointed by the President on the Prime Minister's advice.

The Cabinet is the smaller core of senior ministers within the wider Council of Ministers. Every Cabinet Minister belongs to the Council of Ministers, but not every minister belongs to the Cabinet.

Government formation: General election → Lok Sabha majority/support → President appoints PM → PM advises appointment of ministers → Council of Ministers governs while retaining Lok Sabha confidence.

10. Parliament: Lok Sabha and Rajya Sabha

Parliament consists of the President, Lok Sabha and Rajya Sabha. It makes laws, scrutinizes the executive, debates national issues and oversees public finance. Parliamentary law-making is subject to constitutional limits and judicial review.

Feature	Lok Sabha	Rajya Sabha
Meaning	House of the People	Council of States
Selection	Direct election	Mainly indirect election by elected MLAs; some nominated members
Duration	Normally five years; may be dissolved earlier	Continuing House; not dissolved
Membership tenure	Linked to House term	Ordinarily six years; about one-third retire every two years
Presiding officer	Speaker	Vice-President as ex-officio Chairman
Government confidence	Council of Ministers collectively responsible here	No equivalent collective-confidence requirement
Financial role	Greater role in Money Bills	More limited role in Money Bills

->Protecting Fundamental Rights.
->Interpreting the Constitution.
->Hearing appeals from lower courts.

->Reviewing whether laws and government actions comply with the Constitution.

11. Supreme Court, Judicial Review and Basic Structure

The Supreme Court is the highest court in India. Courts interpret the Constitution and can protect Fundamental Rights. Judicial review is the power to examine whether laws and governmental actions comply with constitutional requirements. It is not a power to reject laws merely because judges prefer another policy.

The Basic Structure doctrine, associated with Kesavananda Bharati (1973), means that Parliament may amend the Constitution but cannot destroy its basic structure. Judicial review helps preserve constitutional supremacy and checks and balances.

A law passed with a large legislative majority may still be reviewed. Constitutional validity is a different question from electoral popularity.

12. State Government, State Legislature and High Courts

India has a federal arrangement in which powers are constitutionally distributed between Union and State institutions. The Governor is the State's constitutional head, while the Chief Minister is the real executive head. The State Council of Ministers, headed by the Chief Minister, is collectively responsible to the Legislative Assembly.

Every State has a Legislative Assembly. Some States also have a Legislative Council, giving them bicameral legislatures; States without a Council have valid unicameral legislatures. State legislatures make laws within their constitutional competence.

High Courts are part of the independent judiciary, not departments of the State Government. They can examine the constitutional validity of State laws and executive action within their jurisdiction.

Union	State
President — constitutional head	Governor — constitutional head
Prime Minister — real executive head	Chief Minister — real executive head
Council of Ministers → Lok Sabha confidence	State Council of Ministers → Legislative Assembly confidence
Parliament — Union legislature	State Legislature — State law-making body
Supreme Court — apex court	High Court — independent constitutional court

13. Additional Classroom Concepts

Constitutionality and Constitutional Supremacy
Constitutionality asks whether a law, decision or official act is consistent with the Constitution. Constitutional supremacy means the Constitution is the highest law. Parliament, State Legislatures, the executive and the judiciary must act within its limits. Parliament is an important law-making institution, but it is not above the Constitution.

Judicial review is the power of constitutional courts to examine laws and government action for constitutional compliance. The basic-structure doctrine limits the power to amend the Constitution: it's essential constitutional identity cannot be destroyed.

Example: If a law unjustifiably violates a Fundamental Right, a competent court may declare it invalid even if the law was supported by most legislators.

Bicameralism and State Legislative Council
Bicameralism means having two legislative Houses. The Union Parliament has Lok Sabha (House of the People) and Rajya Sabha (Council of States). A State may have one House (unicameral) or two Houses (bicameral).

The State Legislative Assembly (Vidhan Sabha) is directly elected. The State Legislative Council (Vidhan Parishad) is the upper House where it exists. It is a continuing House: it is not dissolved, and about one-third of members retire every two years; the ordinary term of members is six years.

Confidence in Lok Sabha versus Majority in Lok Sabha
A majority in Lok Sabha describes the number of seats or voting support held by a party or coalition. For example, in a full House of 543 elected seats, 272 is more than half. Actual voting majorities depend on the applicable voting rule and members present and voting.

Confidence in Lok Sabha means that the Council of Ministers continues to enjoy the House's support and can remain in office. A government need not consist of a single party holding more than half the seats; coalition or outside support can enable it to command confidence.

A formal no-confidence motion tests the support of the House. If the Council of Ministers loses the confidence of Lok Sabha, it must resign. Rajya Sabha does not determine collective responsibility of the Union Council of Ministers.

Example: Party A has 240 seats, Party B supports it with 40 seats: Party A alone lacks an absolute seat majority, but a ministry supported by both may command confidence.

How a Bill Becomes Law in Parliament
Ordinary bill: introduction in either House → discussion and committee scrutiny → passage by first House → passage by the other House in identical form → presentation to the President → signs → Act (law).

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Last-minute memory trick:
- Ordinary Bill: Either House → both Houses agree → President.
- Money Bill: Lok Sabha leads → Rajya Sabha gets 14 days → President.
- Constitutional Amendment Bill: Special majority in both Houses separately → possible State ratification → President.

If the Houses disagree over an ordinary bill, a joint sitting may be possible under constitutional conditions. It is not available for Money Bills or Constitutional Amendment Bills.

Money Bill: may be introduced only in Lok Sabha, with the President's recommendation and Speaker's certification. Rajya Sabha can recommend changes and must return it within 14 days; Lok Sabha may accept or reject the recommendations. It then goes for Presidential assent.

Constitutional Amendment Bill: follows a special procedure, generally requiring special majorities in both Houses separately; certain amendments also require ratification by at least half of State Legislatures. There is no joint sitting for such bills.

The President may return an ordinary non-Money Bill once for reconsideration. If Parliament passes it again and presents it, the President must assent. Distinguish passing a bill from its commencement: some Acts commence on a later notified date.

Election of the President of India

The President is indirectly elected by an electoral college: elected MPs of both Houses and elected MLAs of States, Delhi and Puducherry. Nominated MPs and nominated MLAs do not vote; State Legislative Council members do not vote.

Candidates must be Indian citizens, at least 35 years old, qualified for election to Lok Sabha, and satisfy office-of-profit restrictions. A candidate does not need to be an MP or MLA.

Voting is by secret ballot using proportional representation by single transferable vote. Voters rank candidates; vote values for MPs and MLAs are calculated under constitutional rules. The Election Commission conducts the election.

The President normally serves five years, resigns to the Vice-President, and is the constitutional Head of State. The President ordinarily acts on the aid and advice of the Council of Ministers, subject to constitutional provisions.

Election of the Vice-President of India

The Vice-President is elected by members of both Houses of Parliament, including elected and nominated MPs. State MLAs do not vote.

Candidates must be Indian citizens, at least 35 years old, qualified for election to Rajya Sabha, and satisfy office-of-profit restrictions. They need not already be MPs.

The election uses a secret ballot and the single transferable vote system. The Vice-President serves a five-year term and is ex-officio Chairperson of Rajya Sabha.

If an MP or State legislator is elected Vice-President, that legislative seat is vacated on entering office. The Vice-President resigns to the President and acts as President when the presidential office is vacant.

Appointment of the Prime Minister — Different Cases

The Prime Minister is NOT directly elected by the public as Prime Minister. Citizens elect Lok Sabha MPs; the President appoints the person who can command the confidence of Lok Sabha.

Case 1 — Clear majority: the President normally appoints the leader of the majority party or alliance.

Case 2 — Hung Lok Sabha: no party has a clear majority; a coalition leader or another person capable of demonstrating confidence may be appointed, with majority support tested on the floor of the House where required.

Case 3 — Rajya Sabha member: a serving Rajya Sabha MP can be appointed Prime Minister; being a Lok Sabha MP is not mandatory.

Case 4 — Not currently an MP: a person may be appointed Prime Minister but must become a member of either House within six consecutive months to continue as minister. The person must meet applicable eligibility requirements.

The Council of Ministers is collectively responsible to Lok Sabha. The Prime Minister recommends other ministers to the President and heads the Union government.

Appointment of the Chief Minister — Different Cases

The Chief Minister is appointed by the Governor, not directly elected to that office by the public. State voters elect the Legislative Assembly.

Case 1 — Clear Assembly majority: the Governor normally appoints the leader of the majority party or coalition.

Case 2 — Hung Assembly: the Governor appoints a person likely to command Assembly confidence; a floor test may be necessary.

Case 3 — Legislative Council member: in a bicameral State, a member of the Legislative Council may become Chief Minister.

Case 4 — Not currently a state legislator: appointment is possible, but the person must become a member of the State Legislature within six consecutive months to continue as minister.

The State Council of Ministers is collectively responsible to the Legislative Assembly, not to the Legislative Council.

Appointment of the Governor

The Governor is appointed by the President of India; there is no popular election for the office. A Governor must be an Indian citizen and at least 35 years old.

The Governor holds office during the pleasure of the President. The Constitution provides a normal five-year term, but the Governor may be removed earlier and may continue until a successor takes office.

The Governor is the constitutional head of the State and ordinarily acts on the aid and advice of the Chief Minister and State Council of Ministers, except where the Constitution permits discretion.

An MP or State legislator appointed Governor vacates that legislative seat upon entering office. The same person may be appointed Governor of more than one State.

At-a-Glance Comparison

Office	Selection	Need to be an MP/MLA at appointment?
President	Indirect election by elected	No

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	MPs and eligible elected MLAs	
Vice-President	Indirect election by elected and nominated MPs	No
Prime Minister	Appointed by President; must command Lok Sabha confidence	No initially; must join either House within 6 months
Chief Minister	Appointed by Governor; must command Assembly confidence	No initially; must join State Legislature within 6 months
Governor	Appointed by President	No

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